ADIA

MASTER TRAINING SERVICES AGREEMENT

This Master Training Services Agreement ("**Agreement**") is made effective 12th September 2021 ("**Effective Date**"), and is between:

Abu Dhabi Investment Authority (ADIA), a public institution organized and existing under the laws of the Emirate of Abu Dhabi, United Arab Emirates with its head office located at 211 Corniche Street, PO Box 3600, Abu Dhabi, United Arab Emirates, herein after referred to as "**ADIA**"; and

Khalifa University of Science and Technology (KU), a university organized and existing under the laws of the Emirate of Abu Dhabi, United Arab Emirates with its head office located at Al Saada Street-Old Airport Road Jn, Post Box 127788, Abu Dhabi, United Arab Emirates, herein after referred to as **"University".**

ADIA and the University are hereinafter referred to collectively as "**Parties**" and individually as "**Party**".

1. PROVISION OF SERVICES

1.1 Services. During the Term, as defined in Clause 2.1 below, and subject to the terms and conditions of this Agreement, the University may be engaged by ADIA from time to time to provide training services for ADIA employees, which shall be specified and set out in a statement of work, as defined below in Clause 1.2 (including services which are not specifically described or included in this Agreement or a SOW but which, now or in the future, connected with or are necessary to properly provide or perform the services (including as a necessary, required, inherent or incidental part of the services) ("**Services**").

1.2 SOW. This Agreement contemplates individual agreements regarding the provision of the Services to be agreed and established during the Term in accordance with the terms and conditions of this Agreement ("**Statement of Work**" or "**SOW**"). No Services and no payment for any fees shall be provided prior to having a mutually signed SOW. A SOW shall set the details of the agreed scope of Services, the agreed fees arrangement, the delivery timeframe and any other relevant provisions. To be validly executed and binding, each SOW must be signed by authorized signatories of both Parties. ADIA shall not be obliged to place orders for Services nor for any minimum volume of Services under this Agreement. The University acknowledges that it will not be the exclusive provider to ADIA of the Services and further acknowledges that ADIA may procure the Services from other contractors at its sole discretion.

1.3 The Agreements. Any and all references of "**the Agreements**" herein shall include duly executed SOW(s), unless the context in which used shall otherwise require. To the extent there is a conflict or inconsistency between the terms of this Agreement and a SOW, the terms of a SOW shall prevail and govern.

1.4 Exclusion. Any and all Services provided pursuant to SOW(s) shall be governed by the terms and conditions of this Agreement to the entire exclusion of any and all other terms or conditions, unless agreed in writing by both Parties. No terms or conditions delivered with the Services and/or on the University's website(s) shall form part of the Agreement and the University waives any right which it otherwise might have to rely on such terms and conditions.

1.5 Change of Scope of Services

1.6 If, for any reason, ADIA desires that the Services provided pursuant to SOW(s) should be modified and/or added, ADIA will provide a written description of the modification(s) and/or addition(s), to the University. The University will, within five (5) U.A.E. business days, provide to ADIA a draft modification and/or additional services to the applicable SOW which properly describes the modified and the associated fees or costs, if any. Upon written acceptance by ADIA of such modification(s) and/or addition(s), a separate amendment agreement shall be executed by both Parties to incorporate all modified and/or added services, regardless whether such modification(s) and/or addition(s) may result in an increase or decrease in the fees paid under an applicable SOW. Upon execution by both Parties of such amendment agreement, the modified and/or additional services shall be included as the Services under the applicable SOW.

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1.7 If, for any reason and upon the execution of a SOW between both Parties, ADIA desires that certain Services provided pursuant to that SOW and which are not provided yet by the University are required to be eliminated from the scope, ADIA will identify and provide a written description of the eliminated services and/or deliverables to the University and a separate amendment agreement shall be executed by both Parties. The total fees will be reduced to commensurate with the Services that required to be eliminated from the scope, as per the payment structure set out under the applicable SOW.

2. TERM

2.1 **Term.** This Agreement shall commence on the Effective Date and shall continue in force unless and until terminated in accordance with the terms of this Agreement ("**Term**").

2.2 **Fulfillment of SOW.** Any pending SOW shall be fulfilled for the full period contemplated by that SOW, unless otherwise directed by ADIA, even if this Agreement is otherwise terminated and in such circumstances the terms and conditions of this Agreement shall apply in relation to any SOW that continues to be effective following the termination of this Agreement.

3. FEES, INVOICES AND TERMS OF PAYMENT

3.1 **Fees**.

3.1.1 The fees for the Services will be set out in the relevant SOW.

3.1.2 Unless otherwise stated in the relevant SOW and in any event subject to Clauses 3.1.3 and 3.1.4 below, the fees shall be fixed and fully inclusive of any and all expenses, taxes and costs incurred by the University for the provision of the Services, which include, but not limited to, all applicable taxes, levies or surcharges imposed and payable now, or which may be imposed at any time hereafter.

3.1.3 The fees shall exclude any applicable VAT and ADIA will pay an amount equal to such VAT following receipt of a valid VAT invoice. For the purposes of this Clause 3.1.3, "**VAT**" means value added tax or any equivalent tax properly chargeable in the U.A.E. or elsewhere.

3.1.4 The fees are not subject to alteration, unless there is a change requested by ADIA in the scope, size, complexity or duration of the Services. Any fees alteration is subject to ADIA's prior written approval.

3.1.5 The currency of the fees shall be in UAE dirham (AED), unless determined otherwise in the relevant SOW.

3.1.6 The University represents to ADIA that the fees are at least as favourable as those charged to other customers of the University for services similar to the Services.

3.1.7 For the avoidance of doubt, no late payment fees and/or no late payment interest shall be payable by ADIA in relation to the fees for the Services.

3.2 **Invoices**.

3.2.1 The University shall submit invoices to ADIA in accordance with the applicable SOW.

3.2.2 Upon receipt of an invoice(s), ADIA shall review it and should the payment requirements be deemed in accordance with the scope of the Services and the terms and conditions of this Agreement and the relevant SOW, ADIA shall approve such invoice and proceed with the payment in accordance with Clause 3.3 below.

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3.2.3 In the event of any discrepancy or disagreement on the calculation of an invoice, ADIA will pay undisputed amount of the invoice and shall retain any disputed element of the invoice until the issue is resolved to the satisfaction of ADIA. It is specifically understood and agreed by the University that it shall not be considered a breach of the Agreements for ADIA to withhold payments of invoice(s) which are the subject of a dispute and that the University shall not be permitted to suspend the provision of the Services.

3.3 Payment. Subject to any other relevant Clauses in this Agreement,

3.3.1 in consideration for the provision of the Services in accordance with the Agreements, ADIA will pay the University the fees in accordance with the terms prescribed herein and in the manner specified in the relevant SOW.

3.3.2 unless otherwise stated in the relevant SOW, the fees shall be payable after the successful provision and/or completion of the Services and receipt of all relevant invoices accompanied by supporting documents which have been verified and signed off by ADIA.

3.3.3 unless otherwise stated in the relevant SOW and in consideration for the provision of the Services in accordance with the Agreements, payment shall be made to the University within sixty (60) days of receipt of that invoice thereof by bank transfer to the bank account which shall be notified by the University to ADIA separately in writing.

3.3.4 ADIA shall be entitled to deduct from the invoiced charges: i) the fees for such proportion of the Services that are not delivered, delayed and/or rejected by ADIA due to being not complying with terms of the Agreements, instructions or specifications; ii) any costs or expenses incurred by ADIA and confirmed by the University, which shall not be unreasonably withheld or delayed, as a consequence of the University's failure to deliver the Services in accordance with the Agreements; iii) any amount which is disputed by ADIA, pending resolution of such dispute; and iv) any sums owing by the University to ADIA under any SOW.

4. UNIVERSITY'S OBLIGATIONS

4.1 Standard of Services. The University shall be responsible for the overall management of the Services provided under the Agreements in accordance with the time frames and resources specified therein and shall strictly adhere to the provisions of the Agreements and in accordance with the highest standards of skill, care, due diligence and judgment adhered to by a professional university providing a service of a similar nature and in accordance with best industry practices and standards and any applicable laws and regulations, in a good and workmanlike manner so as not to lead to any negligence or misconduct or default.

4.2 Compliance. The University shall obtain and maintain, at its own cost and at all times during the Term of the Agreements, all licenses, authorizations, certifications and consents as necessary and required to enable the University and the University's personnel, which includes, but are not limited to, its employees, contractors (including sub-contractors) and/or agents ("**University's Personnel**") to provide the Services in compliance with any and all applicable relevant laws and regulation

4.3 ADIA's Reputation. The University shall ensure that the manner in which it performs the Services does not adversely affect the name, trading image, reputation or business of ADIA.

4.4 Prompt Response. The University shall respond promptly, accurately and adequately to any requests made by ADIA in relation to the Agreements and the Services.

4.5 Third Party Code of Conduct.

4.5.1 The University and the University's Personnel, must comply at all times with ADIA's Third Party Code of Conduct set out at http://www.adia.ae/En/guide/Third_Party_Code_of_Conduct.pdf, which forms part of this Agreement. The University shall also procure the compliance by any sub-contractor with the Third Party Code of Conduct.

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4.5.2 The University will notify ADIA as soon as reasonably possible if it becomes aware of any breach, or suspected breach, by any University's Personnel of the Third Party Code of Conduct. If any University's Personnel is in breach of the Third Party Code of Conduct, in addition to any rights or remedies that may be available, ADIA shall have the right to demand that such University's Personnel vacate ADIA's Premises and cease to be assigned to any Services/Deliverables under this Agreement with immediate effect.

4.5.3 ADIA may change its Third Party Code of Conduct from time to time and any such changes will be effective ten (10) days from the date they are posted on the ADIA website.

4.6 Anti-bribery. The University and University's Personnel shall:

4.6.1 comply with all applicable laws, statutes, regulations and codes relating to anti-bribery and anti-corruption ("**Relevant Requirements**");

4.6.2 have and shall maintain in place throughout the term of the Agreements its own policies and procedures, including adequate procedures to ensure compliance with the Relevant Requirements and will enforce them where appropriate;

4.6.3 be responsible for the observance and performance by such persons of the Relevant Requirements, and shall be directly liable to ADIA for any breach by such persons of any of the Relevant Requirements;

4.6.4 not directly or indirectly make an offer, payment, promise to pay, or authorize payment, or offer a gift, promise to give, or authorize the giving of anything of value for the purpose of influencing an act or decision of any person related to ADIA or induce such a person to use their influence to affect ADIA or to make a decision in order to assist the University, or any Affiliate thereof, in obtaining, retaining or directing any such business from ADIA; and

4.6.5 upon request, certify to ADIA in writing signed by an officer of the University, compliance with this Clause 4.6 by the University and all persons associated with the University. The University shall provide such supporting evidence of compliance as ADIA may reasonably request.

4.7 Changes in Law. The University shall promptly notify ADIA of any changes that are required to any of the Services as a result of any alteration, after the Effective Date, in any applicable law and will implement such required changes (at no charge to ADIA) at least thirty (30) days before the due date for the implementation of such legal or regulatory changes, provided that where the implementation of such changes results in a reduction in the scope, or the benefit to ADIA, of the Services, ADIA may propose an amendment to the fees to reflect such reduction and the University will not unreasonably withhold or delay its agreement to such amendment.

4.8 Reports and Updates. As requested by ADIA or as set out in a SOW, the University shall provide ADIA with a progress report and information regarding the Services, including, but not limited to, the University's progress, project status, cost data, progress of any exceptional items and other matters pertaining to the Services. Such reports and information shall be provided to ADIA at no additional charge. The University shall notify ADIA of any problems related to the provision of the Services including all problems which might affect the cost or time for completion of the Services and provide a suggested solution to mitigate or eliminate any impact caused by such problem(s).

4.9 Records. The University shall maintain complete and accurate records of the time spent and materials used by the University in providing the Services in such form as ADIA shall approve. The University shall allow ADIA to inspect such records at all reasonable times on request. Where requested by ADIA, the University shall originate and present program completion certificates to participants and provide ADIA with completed participant attendance rosters.

4.10 Contract Manager. The University shall appoint and maintain a suitably qualified and experienced person as a contract manager who shall serve as the primary point of contact with ADIA concerning all matters relating any and all SOW(s) and shall communicate relevant decisions on behalf of the University to ADIA.

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4.11 Co-operation. The University shall co-operate with ADIA generally, and in particular:

4.11.1 comply with all reasonable requests, instructions and directions (consistent with the terms of the Agreements) issued by or on behalf of ADIA;

4.11.2 on request, provide ADIA with any information and data relevant to the performance by the University of its obligations under the Agreements; and

4.11.3 respond promptly, accurately and adequately to all reasonable requests made by ADIA in relation to the Services.

4.12 University Personnel. The University shall:

4.12.1 provide ADIA with University's Personnel who are adequately and suitably qualified and skilled at a level appropriate to provide the Services under the relevant SOW;

4.12.2 use best efforts to ensure the continuity of University's Personnel; in the event the University's Personnel becomes unavailable, the University may substitute with another personnel subject to securing ADIA's prior written consent;

4.12.3 ensure that the University's Personnel maintain standards of conduct, efficiency and punctuality to ADIA's reasonable satisfaction and comply with all reasonable requests and directions issued by or on behalf of ADIA; and

4.12.4 undertake a background check on each of the University's Personnel prior to any involvement in the Services and that each of its Personnel have not been convicted of any crime or offence of dishonesty.

4.13 Legal Status of University's Personnel. The University shall be responsible for ensuring that all of the University's Personnel engaged in the performance of the Agreements have the appropriate visa that allows them to work on-site at ADIA in accordance with the UAE immigration and labour laws as well and/or other relevant laws as that are required to enable such personnel to perform their allocated tasks under the Agreements, without any delay to the mobilization requirements of such personnel or the timeframes sets out in the Agreements.

4.14 Sub-contracting. The University shall not sub-contract any of its obligations in relation to the performance of the Services under the Agreements to any third party unless prior written authorization is obtained from ADIA. For the avoidance of doubt, no sub-contracting shall in any way relieve the University from its obligations set out in the Agreements and the University shall be ultimately liable to ADIA for any sub-contractors performance thereunder, including but not limited to all negligence, acts, and/or omissions of that sub-contractor, as if no sub-contract has taken place. With a request for approval, the University must give ADIA written particulars of the work to be sub-contracted and the name and address of the proposed sub-contractor, in addition to other information which ADIA may reasonably request.

5. ADIA'S PREMISES

Subject to the provisions of the Agreements, ADIA shall procure for the University's Personnel reasonable access at reasonable times and on reasonable notice to ADIA premises to the extent reasonably necessary to enable the University to perform the Services required under and in accordance with the Agreements. ADIA may refuse access to, or remove from, any ADIA premises any of the University's Personnel if ADIA is of the reasonable opinion that such persons are unsuitable to be on ADIA premises, are not performing the Services in accordance with the Agreements or who have otherwise not met the applicable requirements in the Agreements. If a member of the University's Personnel is removed or replaced at the request of ADIA, this shall not excuse the University from performing any of its obligations under the Agreements. The University shall, if requested, promptly provide a suitable replacement and otherwise ensure that there is no disruption or adverse effect to the provision of the Services.

6. STANDARD OF LIABILITY

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6.1 **Assumption of Liability**. The University assumes full responsibility for any act, negligence, misconduct, breach and/or omission of its personnel, which includes, but not limited to, employees, contractors, agents and/or representatives, engaged in the performance of the Services.

6.2 **Loss or Damages to ADIA**. The University shall be liable for any loss or damage caused to ADIA, its equipment, property and/or for injury to or death of any of ADIA's employee(s) or for fraud; if such loss or damage is due to the University's breach of the Agreements, its negligence, omission, wilful misconduct or misrepresentation in connection with the performance of its obligations under the Agreements, or that of its employees or representatives.

6.3 **Scope of Liability.** ADIA shall not be liable to the University in connection with the exercise of its rights or the performance of its obligations under the Agreement for any indirect or consequential loss whether arising from negligence, breach of contract or howsoever.

7. UNIVERSITY WARRANTIES AND REPRESENTATIONS

7.1 **Authority**. The University represents and warrants that it has all requisite corporate power and authority to enter into the Agreements and is competent to provide the Services in accordance with the terms and conditions of the Agreements.

7.2 **University Obligations under the Agreements**. The University represents and warrants that it shall comply with any and all obligations under the Agreements.

7.3 **Warranty of Professionalism**. The University represents and warrants to ADIA that:

7.3.1 the Services shall be performed in a professional manner in accordance with the requirements of this Agreement and the requirements and time schedules of any applicable SOW in all material respects, and in accordance with best industry standards for similar services and shall devote adequate resources to meet its obligations under the Agreements; and

7.3.2 the Contract shall perform the Services using the University's Personnel whom shall have the required skill, experience and qualifications. The University's Personnel shall perform the Services in a professional manner.

7.4 **Warranty of Conformity to Specifications and Other Warranties**.

7.4.1 The University represents and warrants that the Services shall conform to the specifications for such services / deliverables agreed in writing by the Parties in any applicable SOW.

7.4.2 The University represents and warrants that the Services shall:

(a) be free and clear of defects in design, material and workmanship, all lines, claims, encumbrances and other restrictions and conform to the requirements of the Agreements;

(b) conform to the quality and quantity requirements set forth by ADIA; and

(c) be of satisfactory quality and fit for any purpose held out by ADIA and be suited for ADIA's intended use.

7.5 **Addition to Statutory Conditions**. ADIA's rights under this Clause 7 are in addition to the statutory conditions implied in favour of ADIA by any governing laws.

7.6 **Remedy for Breach of Warranty**. Without prejudice to any right or remedy available to ADIA under the applicable law(s) or under the terms of the Agreements, the University, in the event of the University's breach of the foregoing warranty, ADIA's remedy shall be as follows:

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7.6.1 The University shall use best efforts to cure such breach; provided, that if the University cannot cure such breach within a reasonable time, but no more than fifteen (15) U.A.E. business days after ADIA's notice of such breach; ADIA may, at its option,

(a) undertake any and all necessary corrective work and the University shall reimburse and compensate any and all losses, costs and expenses incurred by ADIA due to the University's breach of warranties hereof; or

(b) terminate the Agreements by serving written notice of termination in accordance with Clause 12. ADIA also reserves the right to suspend payment for the Services concerned until such non-compliance has been rectified or eliminated.

7.6.2 In the event the Agreements is terminated in accordance with this Clause 7.6, the University shall within thirty (30) calendar days after the effective date of termination, refund to ADIA any fees paid by ADIA as of the date of termination for such Services less a deduction equal to the fees for the receipt or use of such Services, which have been performed in accordance with the Agreements, up to and including the date of termination on a pro-rated basis.

7.6.3 The University shall provide same warranties under Clauses 7.1 through 7.6 for any corrective work done.

8. INTELLECTUAL PROPERTY RIGHTS ("IPR")

8.1 University Background IPR. All background/ pre-existing intellectual property owned by the University in relation to the delivered Services materials, which were developed or acquired by the University independent of the business relationship with ADIA or the Services ("University's **Background IPR**"), remains the property of the University.

8.2 Grant of Rights. The University grants ADIA a royalty-free, irrevocable, unlimited, worldwide, non-exclusive and perpetual license to use the University's Background IPR that relate to the Services or Deliverables provided by the University and University Personnel in its business operations. For any other IPR not covered by the license in this clause, ADIA shall obtain the permission and consent of the University to use such IPR.

8.3 Warranty of Non-Infringement of Intellectual Property Right. The University represents and warrants to ADIA that the performance of the Services by the University shall not violate any proprietary rights of third parties, including, without limitation, patents, copyrights, trademarks or trade secrets, and that the University's rendering of the Services to ADIA under the Agreements will not violate any applicable law, rule, regulation or judicial order, or violate any contractual obligations or confidential relationships which the University may have to or with any third party. The University shall use its best efforts to modify or replace the infringing item or service with a non-infringing substitute provided that there is no additional cost to ADIA, there is no adverse effect to the Services.

8.4 ADIA's IPR.

8.4.1 Any and all materials, Services and work product containing any information, process, intellectual property or other data or object proprietary to or confidential to ADIA shall be the sole property of ADIA and all deliverables required by or related to the Services and all tangible and intangible property, work products, packages, application, inventions and discoveries which are conceived, developed or created by the University for ADIA in connection with the performance of the Services provided pursuant to SOW(s), including, without limitation, all technical notes, designs, schematics, software source and object code, prototypes, breadboards, computer models, artwork, literature, methods, processes and photographs ("**Created Works**"), shall be the sole property of ADIA.

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8.4.2 ADIA grants to the University a non-exclusive, non-transferable, royalty-free, personal license to use the Created Works during the term of the applicable SOW for the sole purpose of providing the Services to ADIA in accordance with the applicable SOW and this Agreement. This license shall not extend to exploiting the Created Works commercially without ADIA's prior written consent (which it may withhold in its discretion). The University may not sub-license the Created Works to any third party (including sub-contractor(s) or use it for the benefit of its other customers without ADIA's prior written consent (which it may withhold in its discretion).

8.5 University Obligations. The University:

8.5.1 undertakes, at ADIA's request and at the University's own expense, to promptly do, and procure from the University's Personnel, all such acts and execute all deeds and other documents which may reasonably be required to confirm and perfect ADIA's ownership of the intellectual property rights assigned under Clause 8.4, whether in connection with registration, title or otherwise;

8.5.2 irrevocably and unconditionally waives any and all moral rights relating to the Created Works granted under any laws together with any other rights which the University or the University's Personnel may enjoy under any moral rights legislation existing in the future in any part of the world to the extent permitted by any such legislation;

8.5.3 shall ensure that the assignment of rights by the University and/or the University's Personnel under Clause 8.4 shall be with full title guarantee, free from all encumbrances and shall include the right of ADIA to take action against the University, University's Personnel and any relevant owner of rights in the Created Works for any past, present and future damages and other remedies in respect of any infringement; and

8.5.4 shall ensure that if it acquires, by operation of the law, title to intellectual property that is inconsistent with the allocation of title set out in Clause 8.4.1 it shall, upon request, and at its own expense assign the rights it has acquired to ADIA and shall promptly do all such acts and execute all deeds and other documents which may reasonably be required to confirm and perfect ADIA's ownership of the relevant rights allocated under Clause 8.4.1, whether in connection with registration, title or otherwise.

9. INDEMNITY BY THE University

9.1 Indemnification. To the fullest extent permitted by law, the University shall defend, indemnify and/or hold ADIA, its affiliates and its subsidiaries, and all their respective directors, officers, employees and/or agents (all together "**ADIA Indemnitees**") harmless from and against any and all actions, proceedings, costs, suits, claims, liabilities, fines, penalties, damages, judgments and/or demands of any kind whatsoever brought or made against the ADIA Indemnitees and against any loss or expenses suffered by the ADIA Indemnitees, of any kind whatsoever, including attorneys' fees and costs, that arise or are alleged to have arisen as a result of, arising out of or in connection with: (i) any breach of the Agreements by the University or the University's Personnel; (ii) infringement by virtue of the receipt, use or storage of the Services, any part of the Services of a copyright, patent, trademark, trade secret or any other intellectual property rights or right to privacy, right to publicity or other proprietary right of any third party; (iii) bodily injury, including death, or damage to real or tangible personal property; (iv) violation of any applicable law, rule, regulation or judicial order; (v) breach of confidential obligation under the Confidentiality Agreement, as defined below, and/or under the Agreements; and/or (vi) any act or omission of the University and/or the University's Personnel, including, but not limited to, any negligence, intentional acts or omissions, unlawful conduct, wilful misconduct or bad faith arising as a consequence of the performance or non-performance of the Services.

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9.2 Indemnification Procedure for Third Party Claims. Upon becoming aware of any third party claims, which is subject to Clause 9.1 ("**Claim**"), ADIA will give notice of a Claim to the University, accompanied by a copy of any written documentation regarding the Claim received by ADIA. The University shall, at its option, settle or defend, at its own expense and with its own counsel, the Claim. The University shall not enter into any settlement that imposes any liability or obligation on ADIA without ADIA's prior written consent. The Parties will cooperate in the settlement or defense and give each other necessary access to all relevant information. The University shall reimburse ADIA on demand for all damages incurred by ADIA in defending or settling the Claim, if any.

10. CONFIDENTIALITY AND NO PUBLICITY

10.1 Confidentiality. The University and University Personnel shall keep strictly confidential any information they know or receive concerning ADIA as per the confidentiality agreement dated 25th August 2021 (ADIA Ref. No.: HR/CONT/KG/0398/21) ("**Confidentiality Agreement**") and shall not use any information they know or receive about ADIA for any other purpose except to the extent that it is necessary to perform the Services. The University shall have the University Personnel who will perform the Services (including without limitation, the instructor(s)) execute a confidentiality agreement, which obligates them to keep ADIA's confidential information in strict confidence prior to their performance of the Services. The University shall be jointly and severally liable for any unauthorized use of the confidential information or any type of violation of the Confidential Agreement or this Agreement committed by University Personnel and/or sub-contractor(s).

10.2 No Publicity. The University, University's Personnel, and/or their affiliates, shall not, without the prior written consent of ADIA, advertise or publicly announce it is providing, or has provided, the Services to ADIA, or otherwise use any trade name, trademark, service mark or other information which identifies ADIA in the marketing and publicity activities by the University, University's Personnel and/or their affiliates.

11. INSURANCE

At its own cost, the University shall maintain with a reputable insurance company appropriate insurance policies covering all risks which may be incurred arising out of its negligence, third-party infringement claims, acts and/or omissions in connection with the Agreements, which includes but not limited to general liability insurance, employer's liability insurance, third party liability insurance and professional indemnity insurance. The University shall add ADIA as an additional insured to such insurance and, on ADIA's request, the University shall furnish ADIA with certificate of such insurance with the requirements set forth in this Clause.

12. TERMINATION

12.1 Termination for Convenience. Without prejudice to any right or remedy ADIA may have against the University for breach or non-performance of the Agreements, this Agreement and any SOW may be terminated by ADIA for convenience at any time and without any penalty, obligation or liability to the University upon providing a thirty (30) calendar days' prior written notice to the University.

12.2 Termination for Breach. This Agreement or any SOW may be terminated by ADIA with immediate effect upon giving written notice to the University, without prior recourse to any judicial or other authority, if the University commits a breach or delay or incapability or repudiation of its obligations under the Agreements and such conditions is not remedied within ten (10) U.A.E business days after written notice thereof.

12.3 Termination for Financial Instability. This Agreement or any SOW may be terminated by ADIA with immediate effect upon giving written notice to the University, without prior recourse to any judicial or other authority, upon the occurrence of any of the following events:

12.3.1 the University becomes bankrupt, insolvent, or has its business placed in the hand of a receiver, assignee or trustee, whether by voluntary act or otherwise;

12.3.2 the University makes any composition or enters into an arrangement with his creditors;

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12.3.3 an order is made or a resolution is passed for the winding up of the University, or an order is made for the appointment of an administrator to manage the affairs, business and property of the University, or such an administrator is appointed, or documents are filed with the court for the appointment of an administrator, or notice of intention to appoint an administrator is given by the University or its directors or by a qualifying charge holder, or a receiver is appointed of any of the other University's assets or undertaking, or circumstances arise which entitle the court or a creditor to appoint a receiver or manager or which entitle the court to make a winding-up order, or the University takes or suffers any similar or analogous action in consequence of the debt;

12.3.4 the University ceases, or threatens to cease, to carry on business; or

12.3.5 where there is a risk or a genuine belief that reputational damage to ADIA will occur as a result of the Agreements continuing.

12.4 Post Termination Obligations. In case of termination and/or expiry (together as "**Termination**") of this Agreement or any SOW for whatever reason:

12.4.1 both Parties' accrued rights, liabilities or obligations at the date of Termination shall not be affected;

12.4.2 the University will be entitled for any undisputed payment amount solely to the extent of the Services that are actually provided or supplied up to the date of Termination. For the avoidance of doubt and to further clarify, the University shall refund any fees paid by ADIA for the Services that are not provided for and to ADIA in accordance with the Agreements as of the date of Termination;

12.4.3 the University is not entitled to any other payment, including any amount for loss of profit, loss of opportunity and/or any and all incidental, consequential and/or punitive damages; and

12.4.4 upon Termination of this Agreement, the University shall deliver to ADIA any and all materials and information made available by ADIA to the University and copies of any and all documents that the University has developed up to the Termination date.

12.5 CANCELLATION AND/OR RESCHEDULING OF SERVICES

12.5.1 Subject to Clause 12.5.3 below, ADIA may cancel or reschedule the Services, in whole or in part, at any time upon giving the other party prior written notice before the delivery date of the Services provided under the relevant SOW.

12.5.2 In case of cancellation or reschedule of Services, in whole or in part, the University shall be entitled to the fees of Services that are actually provided pursuant to the SOW up to the date of cancellation and/or ADIA shall be entitled to the refund of the entire fees paid, if any, of the Services that has not been provided.

13. GOVERNING LAW AND JURISDICTION

The Agreements shall be governed by the laws of the Emirate of Abu Dhabi and the Federal Laws of the United Arab Emirates applicable thereto, without giving effect to the principles of conflict of laws thereof that would require the application of the laws of any other jurisdiction. The University irrevocably submits to the exclusive jurisdiction of the courts located in Abu Dhabi, United Arab Emirates, for the purpose of any action, suit or proceeding arising out of or relating to the Agreements.

14. GENERAL PROVISIONS

14.1 Entire Agreement. The Agreements represent the entire understanding and agreement between the Parties hereto relating to the Services described therein and supersedes any and all prior correspondences, communications or agreements, whether written or oral, that may exist between the Parties regarding the same.

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14.2 Assignment. The University shall not be entitled to assign the benefit of the Agreements or transfer or delegate any of its duties or obligations without the prior written consent of ADIA.

14.3 Amendment. The terms and conditions of the Agreements shall apply to all Services and any variation to these terms and conditions shall have no effect unless expressly agreed in writing by ADIA. No amendment to the Agreements shall be effective unless with the prior written consent of authorised signatories of both Parties.

14.4 Nature of Relationship. Nothing in the Agreements is intended to or shall operate to create a partnership or joint venture of any kind between the Parties or to authorize either Party to act as agent for the other, and neither Party shall have authority to act in the name or on behalf of or otherwise to bind the other in any way, including but not limited to the making of any representation or warranty, the assumption of any obligation or liability and the exercise of any right or power.

14.5 Severability. If any provision of the Agreements is held to be illegal, void, invalid or unenforceable under the laws of any jurisdiction, the legality, validity and enforceability of the remainder and the whole of the Agreements shall remain in full force and effect and in such case the Parties shall endeavour and negotiate in good faith solely with respect to an acceptable substitute for such provision.

14.6 Notice.

14.6.1 All notices, requests, demands, and other communications to be given under the Agreements ("**Notices**") shall be in writing and shall be delivered either by hand or mail or fax, or by email. All notices shall be effective on the date received and shall be sent at the following addresses:

For ADIA:
Executive Director,
Human Resources Department
Abu Dhabi Investment Authority
211 Corniche Road
PO Box 3600
Abu Dhabi - United Arab Emirates

For University
SVP – Support Services
Al Saada Street-Old Airport Road Jn
Post Box 127788, Abu Dhabi
United Arab Emirates,
Tel: 02 3123333
Email: ContinuingEducation@ku.ac.ae
cc: ebrahim.alhajri@ku.ac.ae

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14.6.2 Notices shall be deemed to have been given and served,

(a) if sent by courier, two (2) business days from the time of receipt by the courier; or

(b) if sent by email, the time the email message was sent as evidenced by the time stamp on the outgoing email message (unless the sender receives a notice to say that the recipient was away or the email message failed to reach its destination in which case the email message will be deemed to be sent when the individual returns to the office or when an email message is successfully sent with no error message received).

14.7 Survival. The Parties' rights and obligations which, by their nature, would continue beyond the termination, cancellation, or expiration of the Agreements, including but not limited to those rights and obligations of the Parties set forth in Clauses 3. FEES, INVOICES AND TERMS OF PAYMENT, 7. UNIVERSITY'S WARRANTIES AND REPRESENTATIONS 8. INTELLECTUAL PROPERTY RIGHTS, 9. INDEMNITY BY THE University, 10. CONFIDENTIALITY AND NO PUBLICITY, 12.4. POST-TERMINATION OBLIGATIONS, 13. GOVERNING LAW AND JURISDICTION, 14. GENERAL PROVISIONS will survive such termination, cancellation or expiration.

14.8 Expenses. Each Party shall bear their own costs and expenses incurred in connection with the negotiation, preparation and execution of the Agreements.

14.9 Waiver. No failure or delay in i) exercising any right or remedy; or ii) requiring the satisfaction of any condition under the Agreements, and no course of dealing between the Parties, operates as a waiver or estoppel of any right, remedy or condition. A waiver made in writing on one occasion is effective only in that instance and only for the purpose that it is given and is not to be construed as a waiver on any future occasion or against any other person. To the extent any course of dealing, act, omission, failure or delay in exercising any right or remedy under the Agreements constitute the election of an inconsistent right or remedy, that election does not i) constitute a waiver of any right or remedy; or ii) limit or prevent the subsequent enforcement of any contract provision. No single or partial exercise of any right or remedy under the Agreements precludes the simultaneous or subsequent exercise of any other right or remedy. The rights and remedies of the Parties set forth in the Agreements are not exclusive of, but are cumulative to, any rights or remedies now or subsequently existing at law, in equity, or by statute.

14.10 Data Security.

14.10.1 The University represents and warrants to ADIA that in accordance with best industry practice and any and all applicable laws it shall: (a) apply tested security procedures to the University's information systems, and take all precautions necessary to preserve the confidentiality and integrity of ADIA data; (b) procure that no unauthorised third party will, as a result of any act or omission of the University or the University's Personnel, obtain access to any ADIA data; (c) ensure that the University and the University's Personnel do not corrupt, erase or otherwise alter such ADIA data; (d) not disclose passwords supplied by ADIA to access ADIA systems to any person other than the University's Personnel with a need to know; (e) implement and maintain network security controls designed to protect systems from intrusion or limit the scope of any attack or attempt at unauthorised access to ADIA data; and (f) encrypt all ADIA data residing on the systems and servers owned or controlled by the University.

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14.10.2 The University shall: (a) immediately notify ADIA of any data breach or potential or actual breach of clause 14.10.1 or intrusion affecting ADIA data relating to their IT systems or ADIA's systems or the IT systems of any of the University's Personnel, and take all necessary steps and measures to mitigate or rectify or avoid such breach (and prevent it from reoccurring); (b) update ADIA as to the actions taken to resolve such issues; (c) have a documented and regularly tested procedure to deal with unauthorized intrusions or other security violations; (d) permit ADIA to undertake its own investigation into such issues with the University's full cooperation and at the University's expense (and, where necessary, procure the compliance of any of the University's Personnel or third party to such investigation); (e) allow ADIA, its personnel or authorised representatives access to and/or information concerning the University's premises, systems and personnel at any time upon reasonable notice to audit the University's compliance with the obligations in clauses 14.10.1, 14.10.2 and/or 14.10.3; and (f) comply with any additional requirements in relation to data integrity, handling or storage which ADIA may from time to time reasonably request.

14.10.3 If any ADIA data is accessed by a third party who is unauthorised to do so, corrupted, lost, degraded or otherwise altered due to a Third Party's breach of clauses 14.10.1 or 14.10.2 or an act or omission of the University or that of the University's Personnel, then in addition to the obligations set out in clause 14.10.2 above: (a) the University shall be liable for any losses or damages caused to ADIA (unless and to the extent that any such losses or damages result solely from a failure by ADIA to comply with its obligations set out in this Agreement); and (b) ADIA may, at the cost and expense of the University: (i) require the University to restore (or procure the restoration of) ADIA data within five (5) Business Days (or sooner if practicable); or (ii) itself restore or procure the restoration of ADIA data from the University's most current backup of such ADIA data.

14.11 Data Protection.

14.11.1 The University shall comply with all applicable requirements of the Data Protection Legislation. This Clause 14.11 is in addition to, and does not relieve, remove or replace, the University's obligations under the Data Protection Legislation. For the purposes of this Clause, "**Data Protection Legislation**" means all applicable data protection legislation (including the General Data Protection Regulation (EU) 2016/679) and any national laws, regulations and secondary legislation relating to the protection of personal data, as amended or updated from time to time.

14.11.2 The University warrants, represents and undertakes to ADIA and its affiliates that:

(a) it will process any and all personal data provided by or on behalf of ADIA ("**ADIA's Personal Data**") only on the written instructions of ADIA;

(b) it has in place appropriate technical and organisational measures to protect against unauthorised or unlawful processing of ADIA's Personal Data and against accidental loss or destruction of, or damage to, ADIA's Personal Data, appropriate to the harm that might result from the unauthorised or unlawful processing or accidental loss, destruction or damage and the nature of the data to be protected;

(c) all personnel who have access to and/or process ADIA's Personal Data are obliged to keep ADIA's Personal Data confidential and secure;

(d) it shall provide all necessary assistance to ADIA if ADIA is required to respond to any request from an individual with respect to their personal data; and

(e) notify ADIA in writing without undue delay on becoming aware of any personal data breach or suspected breach.

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14.11.3 The University shall at all time during and after the Term indemnify, defend and hold ADIA and its affiliates harmless against all losses, penalties, damages, fines, expenses and liabilities incurred or suffered by ADIA and its affiliates arising from or in connection with any claims, including third party claims, or allegations made against ADIA or its affiliates in relation to a breach of Data Protection Legislation by the University or non-compliance with the warranties set out in Clause 14.11.2 above.

14.12 **Headings**. The headings herein are included for the purposes of convenience only and do not affect the construction or interpretation of any provision of the Agreements.

14.13 **Counterparts**. This Agreement may be executed in any number of counterparts, and by the Parties in separate counterparts, which together constitute one single agreement between the Parties.

14.14 **Electronic Signature(s).** The Parties acknowledge and agree that the Agreements and any subsequent renewal or amendment of them may be executed by an electronic signature, which shall have the same legal force and effect as a handwritten signature.

By signing below, each Party agrees to the terms and conditions of this Agreement.

ABU DHABI INVESTMENT AUTHORITY

By: Mouza Alremeithi (Sep 13, 2021 09:39 GMT+4)

Authorized Signatory

Date:

KHALIFA UNIVERSITY OF SCIENCE AND TECHNOLOGY

By: Ebrahim Alhajri (Sep 15, 2021 18:47 GMT+4)

Senior Vice President – Support Services

Date:

ABU DHABI INVESTMENT AUTHORITY

By: Saeed Almuhairi (Sep 15, 2021 12:39 GMT+4)

Authorized Signatory

Date:

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